

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DELORES SUTTON,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. WILBERT HERNANDEZ,
Det. JOSUE MARCELIN and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional
offending officers,

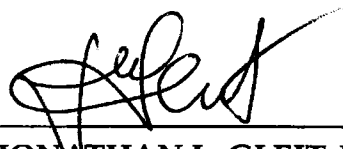
The basis of venue is:
CPLR 504 (3)

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 17, 2019


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept. , New York, New York 10007

Det Wilbert Hernandez Shield 4925 & Det. Josue Marcelin Shield 5026 of the NARCBBX
1 Police Plaza, NY NY 10038 - Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DELORES SUTTON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. WILBERT HERNANDEZ,
Det. JOSUE MARCELIN, and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by Plaintiff and
meant to designate additional offending officers,

Defendants.
-----X

Plaintiff, by her attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF DELORES SUTTON

1. At the time of the commencement of this action, plaintiff DELORES SUTTON
was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.
3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and
still is, a Municipal Corporation and body politic, duly formed, organized and existing
under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about May 11, 2018, Det. WILBERT HERNANDEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about May 11, 2018, at approximately 2 P.M. Det. WILBERT HERNANDEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about May 11, 2018, Det. JOSUE MARCELIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about May 11, 2018, at approximately 2 P.M., Det. JOSUE MARCELIN was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on and about May 11, 2018, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff but necessarily known by Defendants due to their participation and failure to intercede in the arrest and insults visited upon Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about May 11, 2018 OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

11. That on or about May 11, 2018 at approximately approximately 2 P.M., at or near the front of 2330 Washington Avenue, Bronx, New York, the plaintiff DELORES SUTTON was improperly stopped, detained, battered, questioned, arrested, assaulted and confined without knowledge of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine DELORES SUTTON.

12. That at the above time and place plaintiff was lawfully present exiting her premises of 2330 Washington Avenue, Bronx, New York.

13. That the named officers did approach plaintiff and proceeded to stop and question plaintiff without any reasonable suspicion and make demands upon her without authority or a basis in law.

14. That the defendants, their agents, servants and/or employees then assaulted and battered Plaintiff, and utilized there own battery and assault upon her as an ill-fated justification for the erroneous charges lodged against her.

15. That the defendants, their agents, servants and/or employees the arrested the plaintiff DELORES SUTTON without any basis in law or fact and without reasonable, probable or just cause or justification.

16. That the defendants, their agents, servants and/or employees arrested the plaintiff DELORES SUTTON without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

17. That the defendants Det. WILBERT HERNANDEZ, Det. JOSUE MARCELIN and/or OFFICER[S] JOHN AND JAMES DOE, did, during the aforesaid arrest of plaintiff, utilized unjustified, unnecessary excessive force.

18. That the defendants Det. WILBERT HERNANDEZ, Det. JOSUE MARCELIN and/or OFFICER[S] JOHN AND JAMES DOE, did, prior to and during the aforesaid wrongful arrest of plaintiff, assault and batter Plaintiff.

19. That the defendants, their agents, servants and/or employees unlawfully arrested, assaulted, detained, imprisoned and searched the plaintiff DELORES SUTTON, who was aware of her unlawful detention and confinement and took her property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

20. That the defendants, their agents, servants and/or employees placed handcuffs upon Plaintiff that were excessively tight and cause pain and injury, and refused to promptly remove or loosen said handcuffs for an excessive period of time.
21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, enhance employment opportunities and gain overtime pay and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.
22. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and conducting searches in public and while in custody when there is no reasonable basis to conduct a search and without individualized reasonable suspicion of the secreting of evidence, are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal

investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

23. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeen, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

24. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

25. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009

and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

26. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as resisting arrest in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors perceived as disrespect, and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

27. Said practice and procedure of falsely arresting innocent persons on such charges as disorderly conduct or resisting arrest is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs.

28. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein.

29. Moreover, the New York City Bar published an exhaustive study which demonstrated the unconstitutional policy instituted by the the Defendants, which continued unabated despite protestations of the amelioration of said policy, which is found at <https://www2.nycbar.org/pdf/report/uploads/20072495-StopFriskReport.pdf> . Said policy resulted in Court Stipulated Supervision which has not been successful and resulted in an evasion of documentation and generation of reports created by offending officers, thereby surreptitiously continuing the unlawful policy.
30. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police

Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

31. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as resisting arrest in an ill fated attempt at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example:

ANTHONY COOPER was wrongfully subject to similar charges after being assaulted by arresting officer on June 7, 2009 in front of 841 East 227th Street, Bronx, New York;

ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by

P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in

front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was

wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA

on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile

Street and Westchester Ave. , Bronx, New York; JUAN VALDIVIA was wrongfully

subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO

and P.O. ROBERT, GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in

front of 106 West 143rd Street, New York, New York; BENETIO MYTON was

wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and White Plains Road, Bronx, New York, ANTOINE LEARY was wrongfully subject to similar charges after being assaulted by Det. DANIXON CABRERA inside 916 Stebbins Avenue, Bronx, New York; CHRISTINA ROSAS, JORGE ROSAS BETSY CAMILLO wrongfully subject to similar charges after being assaulted by officers of the NYPD on June 6, 2011; TODD WILSON was so subjected to similar wrongful charges on April 11, 2014 in New York NY; ISAIAS STEWART was so subjected to similar wrongful charges on April 28, 2017 at 970 Prospect Avenue, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

32. That no negligence or actions on the part of the plaintiff DELORES SUTTON contributed to the occurrences alleged herein in any manner whatsoever.

33. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq.,

and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff DELORES SUTTON of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

34. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

35. That as a result of the foregoing, the plaintiff DELORES SUTTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DELORES SUTTON

36. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 35 as though more fully set forth herein.

37. That plaintiff, by Order To Show Cause, requested a Notice of Claim, deemed timely nunc pro tunc, to be presented to the defendant CITY OF NEW YORK, by

presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

38. That said Order To Show Cause requested that the necessity of at least thirty (30) days having elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof be neglected or refused by the defendant be waived or stayed.

39. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

40. That said Order To Show Cause requested that the necessity of attending and giving testimony at a General Municipal Law §50-h hearing prior to the commencement of an action be waived or stayed, and if demanded after presentation of the Notice of Claim, be conducted after commencement of the within action.

41. That on or about May 11, 2018 at approximately 2 P.M., at or near the front of 2330 Washington Avenue, Bronx, New York, the plaintiff DELORES SUTTON was improperly stopped, detained, questioned, assaulted, arrested and confined without

knowledge of warrant, without privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest DELORES SUTTON.

42. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff DELORES SUTTON of Due Process under Law.

43. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, Det. WILBERT HERNANDEZ, Det. JOSUE MARCELIN and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

44. That the plaintiff DELORES SUTTON, being aware of her unjust confinement, suffered severe and serious physical, emotional and psychological trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Det. WILBERT HERNANDEZ, Det. JOSUE MARCELIN and OFFICER[S] JOHN AND/OR JAMES DOE.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the plaintiff DELORES SUTTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF DELORES SUTTON

47. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That during her and immediately preceding aforesaid arrest, the defendants, their agents, servants and/or employees utilized unnecessary, excessive and unjustified force against the plaintiff, and subjected the Plaintiff to unsanitary and disgusting conditions.

49. That during his aforesaid wrongful arrest, the defendants, their agents, servants and/or employees assaulted and battered Plaintiff.

50. As a result of the aforesaid assault, plaintiff DELORES SUTTON received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future

will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

51. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

52. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

53. That as a result of the foregoing, the plaintiff DELORES SUTTON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF DELORES SUTTON

54. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 53 as though more fully set forth herein.

55. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

56. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and in the proper use of force.

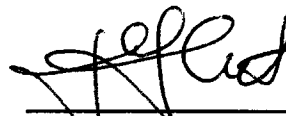
57. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff DELORES SUTTON was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and

attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 17, 2019



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff
DELORES SUTTON
888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det Wilbert Hernandez Shield 4925 & Det. Josue Marcelin Shield 5026 of the NARCB BX
1 Police Plaza, NY NY 10038 - Room 1310

PLAINTIFF'S VERIFICATION

DOLORES SUTTON affirms the following to be true under the penalties of perjury:

I am the Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Dolores Sutton
DOLORES SUTTON

Sworn before me this

17 day of July, 2019

[Signature]
Notary Public

JONATHAN LOUIS GLEIT
Notary Public, State of NY
No. 31-4979332
Qualified in Westchester County
Commission Expires March 25, 2023